

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

4. JENNIFER DANIELS V. JOSE CARRERO

PFL20170812

On February 5, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging violations of the court's custody and visitation orders. Respondent was personally served with the RFO the same day.

The parties are ordered to appear for the arraignment.

TENTATIVE RULING #4: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.

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5. AN MARY DIAZ V. IVAN DEMETRIO LEON DIAZ

25FL0092

Petitioner filed a Requested for Order (RFO) on October 31, 2025, seeking child and spousal support. She concurrently filed an Income and Expense Declaration. Respondent was electronically served on November 10, 2025.

Respondent filed his Income and Expense Declaration on January 20, 2026 and his Income and Expense Declaration on January 26, 2026. Due to a procedural error, the matter was continued to the present date.

On April 9th, Respondent filed and served a Supplemental Declaration of Respondent and his updated Income and Expense Declaration.

Petitioner filed and served her updated Income and Expense Declaration on April 15th. She filed and served a Declaration of Attorney & Memorandum of Points & Authorities on April 17th.

Petitioner is requesting child and spousal support back to the date of filing the Petition. She asks that support be set to \$0 until August 1, 2025, which is the first full month the parties did not reside together. She also requests equal division of child support add-ons.

Respondent asks that Petitioner be imputed with full-time income at \$106 per hour plus health insurance, retirement, and parking. He asks that the court deny the request for retroactive child support and order shared childcare costs only after the right of first refusal has been given and Respondent's mother is also not available to provide childcare. Finally, he asks the court to deny spousal support in its entirety or, alternatively, set a termination date due to the short term nature of the marriage.

An award of temporary spousal support lies solely within the trial court's discretion regarding each party's respective need and ability to pay. See Marriage of Tong & Samson, 197 Cal. App. 4th 23, 29 (2011). As discussed by both parties in their respective briefs, support may be reduced based on the imputation of income. The amount of income imputed is to be based on that spouse's measurable earning capacity which is determined by (1) the ability of the spouse to earn consistent with the spouse's health, age, education, marketable skills, and employment history; and (2) the opportunity available for employment. In re Marriage of Simpson, 4 Cal. 4th 225 (1992). Here, the court is not persuaded by Respondent's argument that Petitioner is underemployed when he too is not working the standard 40 hour (or 36 in the medical profession) workweek. If anything, the